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May 16, 2018					
FEDERAL MARITIME COMMISSION					

FEDERAL MARITIME COMMISSION

DOCKET NOS. 16-01 and 17-09

IN RE: VEHICLE CARRIER SERVICES¹

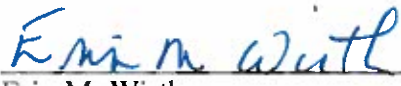
**ORDER ON RESPONDENTS' CONSOLIDATED MOTION
FOR AN EXTENSION OF TIME TO ANSWER**

On May 15, 2018, Respondents filed a motion seeking an extension of time to answer the complaints filed in dockets 16-01 and 17-09. Respondents request an order extending the time to answer these complaints "until the later of (a) June 8, 2018 (ten (10) days after Respondents' grant of leave to appeal expires on May 29, 2018); or (b) if any exceptions or appeals are filed in any of Docket Nos. 16-01, 16-07, 16-10, 16-11, and 17-09, ten (10) days after resolution of any such exceptions or appeals by the Commission." Motion at 1-2.

Pursuant to Rule 62(b)(1), Respondents are required to file an answer within ten days of service of a denial of a motion to dismiss. In these two cases an initial decision granting in part and denying in part the Respondents' motion to dismiss was issued on May 7, 2018.

Complainants have not had sufficient time to respond to the motion, in part due to the expedited timeline of Rule 62(b)(1). To allow additional time for Complainants to weigh in and to permit time for the parties to determine the next steps in the proceedings, a brief extension will be permitted at this time.

Good cause having been shown, the motion to extend the time to answer the complaints is **GRANTED in part and DENIED in part**. For any case not reviewed by the Commission, the parties should file a joint status report within ten days of the due date for exceptions with a proposed schedule for resolution of the proceeding. The appropriate due date for an answer may be addressed by the parties in that joint status report. For any case reviewed by the Commission, it is anticipated that the Commission will review the entire proceeding and the answer would be due ten days after a decision is rendered by the Commission or as ordered by the Commission.


Erin M. Wirth
Administrative Law Judge

¹ The caption has been shortened due to the number of cases. See Schedule B for the list of parties to these two proceedings.

SCHEDULE B

Docket No.	Case Name
16-01	Cargo Agents, Inc., International Transport Management Corp., and RCL Agencies, Inc. v. Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA) Inc., World Logistics Service (U.S.A.), Inc., Kawasaki Kisen Kaisha Ltd., “K” Line America, Inc., Eukor Car Carriers Inc., Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Compañía Sud Americana De Vapores S.A., CSAV Agency North America, LLC, Höegh Autoliners Holdings AS, Höegh Autoliners AS, Höegh Autoliners, Inc., Autotrans AS, Alliance Navigation LLC, and Nissan Motor Car Carrier Co., Ltd.
17-09	Fiat Chrysler Automobiles NV, FCA US LLC, and FCA Italy S.P.A. v. Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Eukor Car Carriers Inc., Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mol (America) Inc., Kawasaki Kisen Kaisha, Ltd., “K” Line America, Inc., Compañía Sud Americana De Vapores, and Höegh Autoliners AS